# Condolence payments to Iraqis soar

*By Bryan Bender, Globe Staff | June 8, 2006*

WASHINGTON -- The amount of cash the US military has paid to families of Iraqi civilians killed or maimed in operations involving American troops skyrocketed from just under $5 million in 2004 to almost $20 million last year, according to Pentagon financial data.

The dramatic spike in what's known as condolence payments -- distributed to Iraqi families whose loved ones were caught in US crossfire or victimized during US ground and air assaults -- suggests that American commanders made on-the-spot restitution far more frequently, according to congressional aides and officials familiar with a special fund at the disposal of military officers in Iraq.

Defense Department officials maintain that the payments -- which officials said range from a few hundred dollars for injuries such as a severed limb to $2,500 for the death of a relative -- mirror a local custom commonly known as ``solatia," in which families receive financial compensation for damages or human losses. They stressed that the payments shouldn't be seen as an admission of guilt or responsibility.

But amid reports that US Marines paid $2,500 per victim after dozens of civilians were killed on Nov. 19 in the town of Haditha -- killings now engulfed by allegations of a massacre -- the fourfold increase in condolence payments raises new questions about the extent to which Iraqi civilians have been the victims of US firepower.

The Haditha firefight is the focus of two US military investigations to determine if Marines, enraged by the death of a comrade from a roadside bomb, may have taken revenge by executing two dozen Iraqi civilians, including women and young children, and then tried to cover it up. In his first public comments about the killings, Marine Commandant Michael Hagee, the Corps' top general, acknowledged yesterday that the evidence being reviewed includes a set of photos of the victims taken by a Marine intelligence team immediately after the killings.

The payments to victims' families in Haditha are part of what is generally considered a common US military practice in Iraq. But Senator Edward M. Kennedy, a Massachusetts Democrat and member of the Senate Armed Services Committee, is pushing for a broader investigation into condolence payments.

``The dramatic rise in condolence payments raises many questions of accountability and process -- and serve as a warning sign for incidents like Haditha," Kennedy told the Globe in a statement yesterday.

A Pentagon spokesman, asked about the rise in condolence payments last year, yesterday said that the US commanders in Iraq have the discretion to determine how and when the money is disbursed. US officials in Baghdad did not reply to requests for comment via telephone and e-mail.

The compensation payments came from the Commanders Emergency Response Program, or CERP. The fund, set up in 2003, is designed to allow military commanders on the front lines to help stabilize and secure Iraq by building good will among locals.

The fund, which once totaled more than $700 million, is available to unit commanders for a wide

range of immediate local needs: neighborhood cleanups, promoting education, and distributing food, as well as paying for health care and water and sanitation projects, according to an October report by the Pentagon's Special Inspector General for Iraq Reconstruction. The report concluded the money was being spent appropriately.

The fund is generated from money seized or captured from insurgents along with contributions from the United Nations and $180 million appropriated by the US Congress, according to the October audit.

Throughout the war, however, commanders have largely used the money to make amends to the families of innocent Iraqis who have been wounded or killed during US military operations. In a single day in October 2004, Marines from the 11th Expeditionary Unit distributed more than $570,000 in condolence payments and instant restitution for damaged property in the city of Najaf, after heavy fighting between US troops and Shi'ite militia forces.

The unit said in a press release at the time that the payments ``are paid to express sympathy for those injured or who lost a family member during the fighting."

As the war grinds on, however, a larger share of the money available to commanders in the field appears to have been used to pay for such cases, according to the Pentagon figures obtained by the Globe.

The data shows that the total condolence disbursements from the CERP fund was $4.9 million in the fiscal year that ended Sept. 30, 2004, and that it was $19.7 million during the period of Oct. 1, 2004, to Sept. 30, 2005. Pentagon officials said they did not have a total for how much money has been spent so far this year.

If each of the payments made in 2005 was the maximum $2,500 for an Iraqi death, it would amount to 8,000 fatalities. But it's unknown exactly how many payments were made or for what amount.

Nevertheless, Lieutenant General Peter Chiarelli , commander of Multinational Forces in Iraq, said in a radio interview broadcast last week that such payments have become a common practice for US troops trying to preserve the good will of average Iraqis caught in the middle of a vicious guerrilla war.

Chiarelli told National Public Radio that making solatia payments has become a standard part of the American military effort. He said the practice is ``common in this part of the world. It means a death payment, a death gratuity, so to speak. It is part of life over here."

Khaled Salem Rsayef , a lawyer who is representing some of the families of the Haditha victims and who himself lost relatives during the killings, told the Associated Press last week that about a month after the deaths the US military gave the families $2,500 for each person killed , except four males said to be insurgents -- for a total about $38,000.

``When I received the compensation money, I found out that it was $2,500 for each victim," Rsayef said. ``I told them that it's a small sum that does not match the magnitude of the disaster."

After returning from a trip to Iraq, General Hagee, the Marine c ommandant, told reporters yesterday that he is ``gravely concerned" about the allegations in Haditha and indications Marines may also have been responsible for the shooting death of an Iraqi civilian in the town of Hamdaniya in April.

Seven Marines and a Navy corpsman are in custody in the brig at Camp Pendleton, Calif. , pending

the outcome of that investigation.

``As commandant I am gravely concerned about the serious allegations concerning actions of some Marines at Haditha and Hamdaniya," Hagee said. ``I can assure you that the Marine Corps takes them seriously."

Meanwhile, some experts have said that the commanding officers who approved the Haditha condolence payments should have asked more questions about what happened that day -- and whether the Marines were responsible.

Army Colonel Peter Mansoor , who commanded the First Brigade of the First Armored Division in Iraq from July 2003 to June 2004, told the Council on Foreign Relations earlier this week that he personally looked into each of the half a dozen or so payments that were made under his watch.

``In my brigade, I investigated every one of those cases," said Mansoor, who is now a senior military fellow at the Council on Foreign Relations in New York.

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